



POLICE DEPARTMENT

July 28, 2011

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Daniel Martinez
Tax Registry No. 910119
Transit Bureau District 2
Disciplinary Case No. 86441/10

The above-named member of the Department appeared before me on March 25, 2011, charged with the following:

1. Police Officer Daniel Martinez, assigned to Transit District 2, while off-duty, on or about and between November 10, 2009 and November 13, 2009, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Police Officer Daniel Martinez failed to cooperate with a Department investigation of a possible grand larceny, to wit: Police Officer Martinez refused to be interviewed by Midtown North Detective Squad investigators regarding the possible theft of property that he provided security services for during the course of his authorized, off-duty employment.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT-PROHIBITED
CONDUCT-GENERAL REGULATIONS

2. Police Officer Daniel Martinez, assigned to Transit District 2, while off-duty, on or about and between August 15, 2009 and September 1, 2009, upon being advised by Person A, a supervisor at Protect All Security, of a possible theft of property that he escorted while working off-duty employment for Protect All Security, failed to notify the Internal Affairs Bureau, as required.

P.G. 207-21, Pages 1-2, Paragraphs 1-3 ALLEGATIONS OF CORRUPTION
AND OTHER MISCONDUCT
AGAINST MEMBERS OF THE
SERVICE

COURTESY • PROFESSIONALISM • RESPECT

The Department was represented by Scott Rosenberg, Esq., Department Advocate's Office, and the Respondent was represented by Craig Hayes, Esq.

The Respondent, through his counsel, entered a plea of Guilty to one of the subject charges and a plea of Not Guilty to the remaining charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty of Specification No. 1. The Respondent, having pleaded Guilty, is found Guilty of Specification No. 2.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that during August and September, 2009, the Respondent engaged in authorized off-duty employment as an armed security guard for Protect All Security; that Person A was a supervisor at Protect All Security; and that on August 15, 2009, Person A notified him about the possible theft of a quarter million dollars worth of Rolex watches that had been picked up and transported by Federal Express (Fed Ex) couriers to which the Respondent had been assigned by Protect All Security as an escort on August 10, 2009.

The Department's Case

The Department called Lieutenant Paul Valerga as its only witness.

Lieutenant Paul Valerga

Lieutenant Valerga, who is presently Commanding Officer of the 13 Precinct Detective Squad, testified that he was assigned to the Midtown North Precinct Detective Squad (MTN PDS) from 2007 until December, 2010. He was assigned to the Internal Affairs Bureau (IAB) from 2005 to 2007.

In 2009, while he was still assigned to MTN PDS, he supervised the investigation of a grand larceny involving two shipments of Rolex watches which "had somehow disappeared from Fed Ex" while they were being shipped to the Rolex Company. The Fed Ex courier who was picking up these watches on August 10, 2009, had a security escort provided by Protect All Security. Detective Lynch, who was handling the investigation, ascertained that the Respondent was the security escort provided by Protect All Security. Once it was determined that the Respondent was an active police officer, Valerga instructed Lynch to call IAB and get a log number.

In November, 2009, Valerga sought to interview the Respondent because "he was a witness in this investigation" since he was "an escort for the courier, and we were basically going to interview him on that premise" and then Sergeant Cutter of IAB "asked us to conduct the interview." Valerga placed a telephone call to the Respondent to set up an interview in regard to the investigation. Since the Respondent was not in, Valerga left a message.

When the Respondent called back, Valerga asked him if he would be willing to come in to MTN PDS and be interviewed. The Respondent asked him "What is this about?" Valerga told him that he "was a witness to an investigation that we were

conducting.” The Respondent told Valerga that he would get back to him, but he did not call back. His lawyer called back “a couple of days” later and asked the same questions in regard to what this was all about and Valerga “explained again that this was, you know, he needed to come in as a witness to the investigation that we were handling.” The Respondent’s attorney said that he would get back to him. When the attorney called back, he stated that the Respondent “would not be answering any questions.”

Valerga testified that if the Respondent had come in to MTN PDS to be interviewed and if he had refused to answer questions by asserting his Fifth Amendment right against self-incrimination, he would not have sought to have the Respondent disciplined. Neither Sergeant Cutter nor anyone else assigned to IAB ever told him that the Respondent would be disciplined if he exercised his Fifth Amendment right against self-incrimination or if he refused to answer a question.

On cross-examination, Valerga testified that during his career he has personally investigated “thousands of cases” and supervised numerous investigations. He confirmed that, at the point in time when the Respondent was contacted, no one had been arrested for the theft and that there were three people who were closely involved with the packages, the two couriers, one of which was the Respondent, and the Fed Ex driver.

He agreed that an investigator should try to keep an open mind who may have done something, and that the interview of the Respondent that he was trying to set up would have been a voluntary interview and that if he had come in and submitted to an interview, he would not have been in custody and he would not have been issued any Miranda warnings because when witnesses come in on their own, they are free to leave at any point and there is no requirement to issue them any Miranda warnings.

He confirmed that if the Respondent had agreed to be interviewed and had then implicated himself in the commission of a crime, he could have used the Respondent's statements against him. He agreed that there is no requirement that when someone comes in for a voluntary interview that they have counsel with them, and he would not have to wait for counsel or even tell a witness that they can have an attorney there. He confirmed that when he first called the Respondent, if the Respondent had said that he was willing to come right over and be interviewed, he would not have stopped the Respondent and told him "maybe you should have a lawyer here" with you.

He further confirmed that at a Patrol Guide 206-13 hearing an officer who is either the subject or a witness in an investigation is brought in and compelled to give a statement and that there are a series of rules and procedures that have to be followed including that the officer must have counsel present and that the interview must be recorded. He confirmed that after the IAB log was created, there was communication between MTN PDS and IAB about the larceny and about the Respondent but that "it was a one-way conversation. It was them asking me questions and that was it."

He asserted that the Respondent was "never" a suspect in his investigation. He was considered to be "a witness to the case." He agreed that the Respondent could he have become a suspect in the course of the investigation if evidence showed that he was an accomplice to the theft. He confirmed that in investigating cases, he has brought in people to be interviewed who might initially be considered witnesses but who could turn out to be suspects. He agreed that statements people make when they are interviewed can be used against them if they are ever prosecuted for a crime. He agreed that if the Respondent had come in to MTN PDS and started giving a statement as a witness and

things that he said made him a suspect, he would not have told the Respondent to get a lawyer or to stop talking if he was talking under his own free will.

When he contacted the Respondent to try to get him to come in for an interview, he was aware that IAB had opened a log on this case. He confirmed that he and Detective Lynch were contacted several times by Sergeant Cutter from IAB who wanted to be made aware of when and where the interview of the Respondent would take place. He confirmed that the "orders" he received regarding the interview were that although IAB wanted to be present during this interview, they would not be identifying themselves as members of IAB during the interview. Because this was going to be a voluntary interview, if the Respondent had appeared without counsel, he was prepared to go forward with the interview.

On redirect examination, he confirmed that the plan to have someone from IAB posing as a MTN PDS detective sit in on a potential interview of the Respondent by MTN PDS was ultimately discarded.

On re-cross examination, he recalled that when he telephoned the Respondent about coming in to MTN PDS for an interview, he had already been instructed that the interview "was not going to happen in that way," although he was "not one hundred percent" certain that the plan to have someone from IAB posing as a MTN PDS detective sit in on an interview of the Respondent by MTN PDS had been discarded before he placed his telephone call to the Respondent. He agreed that as late as October 7, 2009, he had a conversation with Sergeant Cutter in which he stated that IAB would like to be present at the interview under the guise they were assigned to MTN PDS. He telephoned the Respondent one month later.

The Respondent's Case

The Respondent called Sergeant Daniel Cutter as a witness and testified on his own behalf.

Sergeant Daniel Cutter

Sergeant Cutter, who has been a member of the Department since July 1, 2003 and who was assigned to IAB in April, 2009, testified that he often works with the New York County District Attorney's Official Corruption Unit (OCU) which investigates and sometimes prosecutes police officers. He agreed that at a Patrol Guide 206-13 hearing an officer is compelled to give a statement, that there are rules and procedures that have to be followed including that the officer must have counsel and that the interview must be recorded, and that if the officer refuses to answer questions he can be suspended.

He was assigned to investigate the log regarding the Respondent's possible involvement in a larceny. The case was classified "C" for corruption. OCU was notified and they worked with IAB during this investigation. After a consultation with an Assistant District Attorney (ADA) at OCU on October 1, 2009, an IAB worksheet was prepared which states, "ADA Crooks recommended that Midtown North PDU interview subject officer, Police Officer Daniel Martinez, as a witness to lock him into a timetable of events. OCU recommends that, if possible, IAB sit in on the interview under the guise of being part of the squad to listen in on the interview." Cutter confirmed that it was his understanding that the phrase "under the guise of being part of the squad" meant that IAB members present at the MTN PDS interview would not identify themselves as being

assigned to IAB. Cutter communicated this proposal to MTN PDS. Since no MTN PDS interview of the Respondent was ever conducted, on January 5, 2010, OCU provided IAB with approval to conduct a Patrol Guide 206 13 hearing of the Respondent. Cutter obtained the Respondent's phone records and bank records.

On cross-examination, Cutter confirmed that he never ordered Valerga to conduct an interview of the Respondent, he never told Valerga that if the Respondent attended an MTN PDS interview he was to be disciplined if he failed to answer a question or refused to answer a question based on his Fifth Amendment right against self incrimination, and he never communicated to Valerga that the Respondent was to be disciplined in any way in regard to a potential MTN PDS interview.

The Respondent

The Respondent acknowledged that after Person A told him about the missing watches, he did not immediately notify IAB about the theft because he "really wasn't aware of how I had to do this as far as notification." About two days after he returned to work, he had a conversation with the administrative lieutenant at his command in which he "mentioned to him that my name had been brought up on some investigation of a theft that happened in my off-duty employment." His employment with Protect All Security was terminated. Person A told him that he was terminated because of the theft that had occurred.

"Some sergeant, I forget his name," from MTN PDS told him to "come down for an interview." He told this sergeant, "Sure, I would, but I would have to speak with my attorney first." He decided to speak to an attorney at that point because he "felt that

at the time if someone was going to ask me questions from the job, from NYPD, it would be a GO-15. I felt I have been a police officer long enough to know that they would call you down on a GO-15 if they wanted to ask you questions. So I didn't feel comfortable going to an interview that was of a criminal nature without representation." He sought counsel and his attorney "told me that I was not going to go down for an interview." Since he had been advised by his attorney not "to go down for the interview, I decided not to go for the interview."

He received a second call from MTN PDS on the day he was scheduled to meet with his attorneys but before he had actually met with the attorneys. MTN PDS "were asking me why I hadn't come down there. I said to them I had not spoken with my attorneys yet. I had an appointment that day to speak with the attorneys and I would get back to them." The caller from MTN PDS "didn't sound too happy that I didn't come down for the interview, that I hadn't called them back yet," but he was not comfortable going to MTN PDS to be interviewed without an attorney being present because the interview was not within the guidelines of Patrol Guide 206-13.

On cross-examination, the Respondent agreed that uniformed members of the service should cooperate with law enforcement agencies that are investigating criminal matters and that MTN PDS was investigating a criminal matter regarding the thefts. When MTN PDS contacted him about an interview, he "didn't refuse, I told him I will be happy to come down once I spoke to my attorney." The Respondent asserted that after his telephone conversation with the caller from MTN PDS he was "not sure if I was a witness or a subject" with regard to the MTN PDS investigation.

After he spoke to his attorney, his attorney had a conversation with the MTN PDS caller. He agreed that he did not speak directly to the MTN PDS caller. His attorney handled that conversation and he did not go down for the interview. The Respondent conceded that it was ultimately his decision as to whether he should or should not rely on his attorney's advice and that he could have told his attorney that he was not going to follow his advice and that he was going to comply with MTN PDS' request to come to MTN PDS to be interviewed.

FINDINGS AND ANALYSIS

Specification No. 1

It is charged that on and between November 10, 2009 and November 13, 2009, the Respondent engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that he failed to cooperate with a Department investigation of a possible grand larceny by refusing to be interviewed by Midtown North Detective Squad (MTN PDS) investigators regarding the possible theft of property that he had provided security services for as an employee of Protect All Security.

The Respondent does not dispute that a police officer who is a potential witness regarding a criminal investigation has a duty to cooperate with the law enforcement agencies that are conducting the criminal investigation. The Respondent also does not dispute that the crime that MTN PDS was investigating involved the possible theft of one-quarter of a million dollars of Rolex watches and that he was a relevant witness regarding that investigation in that he had been the security escort for the Fed Ex couriers who were transporting the missing watches. Finally, the Respondent does not dispute

that when MTN PDS contacted him and requested that he come to MTN PDS be interviewed, he told Valerga that he wanted to speak with an attorney, that he never personally called MTN PDS back, and that he never arranged to be interviewed as MTN PDS had requested.

The Respondent asserts that his refusal to be interviewed by MTN PDS was justified based on three separate grounds: 1) That he was considered a suspect, not merely a witness, regarding the theft; 2) That MTN PDS was in contact with IAB which had opened their own corruption investigation into whether the Respondent had been involved in the commission of the theft; and 3) That he had the right to rely on his attorney's advice that he not appear at MTN PDS to answer questions about the theft. I will analyze each of the Respondent's arguments separately.

The Respondent's assertion that his refusal to be interviewed by MTN PDS was justified because he was a suspect regarding the theft

In his testimony at this trial, the Respondent asserted that after his telephone conversation with Valerga he was not certain whether he was a witness or a subject with regard to the MTN PDS investigation. However, I credit Valerga's testimony that when he spoke to the Respondent on the telephone he was careful not to use the word "subject" and that he specifically told the Respondent that he wanted to interview him because he "was a witness to an investigation that we were conducting." I credit Valerga's claim that he only told the Respondent that he wanted to interview him as a witness because, as he testified on cross-examination, as a former IAB investigator he was extremely

conscious that when a member is notified to appear for a Department interview as the subject of an official investigation, the rights, warnings and other procedures delineated under Patrol Guide 206-13 take effect and the interview can only be conducted pursuant to those procedures.

Even though I find that Valerga informed the Respondent that he would be interviewed as a witness, the Respondent's concern that he could have become a suspect in Valerga's investigation was justified because a witness can quickly become a subject of an investigation depending on the answers the witness provides at an interview. However, the mere possibility that the Respondent could have become a suspect in the investigation based on an answer he provided at an MTN PDS interview does not excuse the Respondent's action of refusing to be interviewed by MTN PDS. As a witness in a criminal investigation, the Respondent had an array of legal protections at hand including the right to invoke the Fifth Amendment to the U.S. Constitution if he believed that a truthful answer to a question posed by Valerga might incriminate him. Here, the Respondent never even called Valerga back to request that he be allowed to be represented by legal counsel at his MTN PDS interview. Rather, the Respondent authorized his attorney to call Valerga back to inform him that the Respondent would not be answering any questions.

A member's failure to even attempt to cooperate with a Department investigation of an off-duty incident in which the member was involved by refusing to speak to the investigating officer constitutes misconduct. In Disciplinary Case Nos. 82323/06, 83217/07 & 84836/09 (signed on January 12, 2010), a member was found to have committed misconduct by failing to cooperate with a Department investigation when the

member refused to talk to an on-duty sergeant from an investigations unit who had telephoned the member to obtain information about an off-duty incident in which the member had been involved.

Based on the above analysis, I reject the Respondent's argument that under the circumstances presented here the Respondent could only be lawfully interviewed by MTN PDS pursuant to the provisions of Patrol Guide 206-13. The provisions of Patrol Guide 206-13 apply to disciplinary investigations. Criminal investigations and disciplinary investigations have different purposes and constitute separate investigations. Here, MTN PDS was conducting a criminal investigation, not a disciplinary investigation. The Respondent had rights uniquely connected with each of these types of proceedings and had a duty to cooperate with the criminal investigation, which he acknowledged. He has failed to establish any valid reason for failing to so cooperate.

The Respondent's assertion that his refusal to be interviewed by MTN PDS was justified because IAB had contacted MTN PDS regarding IAB's investigation of the Respondent

The Respondent argued that he was justified in refusing to appear at MTN PDS to be interviewed by Valerga because in their testimony at this trial Valerga and Cutter confirmed that IAB had contacted MTN PDS regarding the recommendation of the New York County District Attorney's Official Corruption Unit (OCU) that IAB have an IAB investigator attend the interview posing as an MTN PDS detective. I credit Valerga's testimony that OCU's proposal that an IAB investigator attend the interview posing as an

MTN PDS detective was never put into effect and that it was rejected before Valerga telephoned the Respondent to try to set up an interview.

The record establishes that during the time period between his conversation with Valerga and the day that his attorney called Valerga to tell him that the Respondent would not be answering any questions about the theft all that the Respondent knew for certain was that MTN PDS wanted to interview him regarding their criminal investigation. But even if the Respondent and his attorney strongly suspected that MTN PDS was working with IAB, and even if OCU's "guise" proposal had been put into effect, the Respondent was still required to cooperate with the MTN PDS criminal investigation by calling Valerga back and arranging to appear at MDNS to be interviewed. As discussed above, as a witness in a criminal investigation the Respondent was not without legal rights and protections.

Based on the above analysis, I reject the Respondent's assertion that his failure to appear at MTN PDS was justified because IAB had contacted MTN PDS regarding OCU's proposal that an IAB investigator attend the interview posing as an MTN PDS detective.

The Respondent's assertion that his failure to appear at MTN PDS be interviewed by Valerga was justified because he was relying on his attorney's advice

The Respondent testified that his decision that he would not call Valerga back and that he would not appear at MDNS to be interviewed by Valerga was based on legal advice offered by his attorney. It should have been self-evident to both the Respondent

and his attorney that he had a duty to cooperate with MTN PDS' criminal investigation and that he could not simply refuse to be interviewed by MTN PDS.

Although the Respondent asserted that he was entitled to rely on his attorney's advice, prior disciplinary decisions have consistently held that a member does not receive immunity from being disciplined for an act of misconduct merely because the member has relied on advice offered by his attorney. Thus, members have been disciplined for refusing to attend official Department interviews even where the members had relied on legal advice that the Department could not force them to answer questions while criminal charges were pending against them. See Case Nos. 60523/87, 66635/92 and 66671/92. Similarly, it has been held that a member can be disciplined for refusing to answer questions at an official Department interview about a conversation with his spouse even though the member had relied on his attorney's legal advice that his communications with his spouse (regarding a criminal conspiracy) were protected by the marital privilege. See Case No. 72243/97.

Conclusion

Having rejected the grounds for the Respondent's assertion that his refusal to be interviewed by MTN PDS was justified, I find the Respondent Guilty of Specification No. 1.

Specification No. 2

It is charged that on and between August 15, 2009 and September 1, 2009, the Respondent failed to notify IAB that he had been informed by his supervisor at Protect

All Security, Person A, that property that he had escorted while working off-duty employment for Protect All Security was believed to have been stolen. The Respondent's testimony that he failed to notify IAB because he was not aware that he was required to notify IAB does not excuse or even serve to mitigate his misconduct of failing to follow the notification procedures delineated in the Patrol Guide.

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

The Respondent was appointed to the New York City Transit Police Department on January 10, 1987. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency and discipline of the Department, in that he failed to cooperate with an MTN PDS investigation of a possible grand larceny by refusing to be interviewed by an MTN PDS investigator regarding the possible theft of property that he had provided security services for during his off-duty employment as an armed escort. In determining an appropriate penalty for this misconduct, I have taken into consideration the fact that the Respondent's refusal to be interviewed by an MTN PDS investigator had no adverse impact on MTN PDS' larceny investigation, and the fact that when the Respondent was notified to appear for an official Department interview, which was

conducted pursuant to Patrol Guide 206-13 on March 5, 2010, he appeared as ordered and truthfully answered all of the questions posed to him at this interview.

The Respondent has pleaded Guilty to having failed to notify IAB about his involvement in this off-duty incident. The Respondent's misconduct of failing to notify IAB about his involvement in this off-duty incident is partially mitigated by the Respondent's un-refuted testimony that two days after Person A notified the Respondent about the theft of the watches, the Respondent informed the administrative lieutenant at his command about what Person A had told him.

The Assistant Department Advocate recommended that the Respondent be required to forfeit 30 vacation days as a penalty. In Disciplinary Case Nos. 82323/06, 83217/07 & 84836/09, signed on January 12, 2010, an 18-year sergeant with no prior disciplinary record forfeited a total of 40 days (11 vacation days and 29 suspension days already served) and was placed on one year dismissal probation after she was found guilty at trial of having failed to cooperate with a Department investigation by refusing to speak to a Department investigator who had called the member to obtain information about an off-duty incident in which the member had been involved. In that case, as here, the member also failed to immediately notify the Department about her involvement in the off-duty incident. However, in that case, unlike here, the member committed additional misconduct by being discourteous to the Department investigator who called her and by making false entries in the patrol log that she had performed camera checks on eight occasions when she had not actually performed these camera checks.

Having examined the facts and circumstances surrounding the Respondent's misconduct and having examined the Respondent's prior disciplinary record, I recommend that the Respondent forfeit 30 vacation days.

Respectfully submitted,

R W Vinal
by Mast & AG

Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED
[Signature]
JUN 27 2012
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DANIEL MARTINEZ
TAX REGISTRY NO. 910119
DISCIPLINARY CASE NO. 86441/10

The Respondent received an overall rating of 4.0 on his 2010 performance evaluation, 4.0 on his 2009 evaluation, and 3.5 on his 2008 evaluation. He has no medals. He has never been designated Chronic Sick.

He has a prior formal disciplinary record. In 1996, [REDACTED]

[REDACTED]

In 2010, he forfeited ten vacation days after he pleaded guilty to having failed to notify DMV that he had changed his address and having failed to notify his auto insurance company that he had changed his address thereby avoiding having to pay an increased insurance coverage premium.

For your consideration.

R W Vinal
by [Signature]
Robert W. Vinal
Assistant Deputy Commissioner Trials